

GUIDE · CORE PLANNING

The cornerstones of *estate planning*.

Your plan is more than a record of how your assets pass. It is part of a bigger financial picture, built to carry out your wishes and look after the people you love.

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Most Florida families need the same handful of documents. Each one does a specific job, and they work best as a set. This overview walks through the six at the heart of a complete plan, the tax structures worth knowing about, and the questions clients ask us most.

The six cornerstone documents

1· The Revocable Living Trust

A living trust is a flexible arrangement that holds title to your assets during your lifetime. You stay in full control as trustee; the trust simply owns the property on your behalf. Because the trust holds title instead of you personally, those assets pass to your beneficiaries on your death without Florida probate, which spares your family the delay, cost, and public record.

A trust does two things well: it keeps your family out of probate, and it keeps your affairs private.

2· The Family Protection Subtrust

A “trust within the trust” that takes effect after your death. The subtrust holds and manages those assets for your beneficiaries and distributes them on the standard you set. Creditors, divorces, and lawsuits have a much harder time reaching money held this way than money handed over outright.

3· The Last Will & Testament

In a funded trust plan the will works mainly as a *pour-over will*: a safety net that catches anything not titled in the trust and directs it inside. It also does something a trust cannot: it is where you name the guardian for your minor children. Without a will, a Florida court decides who raises them.

A COMMON MISCONCEPTION

“I have a will, so I don’t need a trust.” A will alone still passes through probate. For Florida residents with real property, a funded trust is almost always the more sensible foundation, with the will as backup.

4· General Durable Power of Attorney

Grants someone you trust the authority to manage your financial affairs if you are incapacitated. The word “durable” is the important part: it keeps working even after you can no longer make decisions, which is exactly when you need it most. Your agent can pay bills, manage investments, file taxes, and handle real estate when you cannot.

5· Healthcare Directives

An **Advance Directive (Living Will)** records your wishes for life-sustaining treatment and end-of-life care, relieving your family of the hardest conversation. A **Healthcare Surrogate Designation** names the person

who applies those wishes to the facts of the moment, alongside your physicians.

6 · HIPAA Authorization

Federal privacy law restricts who may receive your medical information. A HIPAA authorization names the people, usually your spouse, agent, and surrogate, allowed to receive it, so those helping you are not stopped at the hospital's privacy desk.

Tax planning considerations

A/B (credit-shelter) planning. For married couples with larger estates, separate trusts can let each spouse use their individual estate-tax exemption, passing more wealth to the next generation tax-efficiently.

Irrevocable trusts with lifetime protection. For higher-net-worth families concerned about federal or state estate tax, an irrevocable trust can offer estate-tax reduction, lifetime gifting, and protection from creditors and divorce, in exchange for less day-to-day flexibility. These are long-term decisions worth careful advice.

Common questions

What is probate, and why avoid it?

Probate is the court process that validates a will, appoints an executor, settles debts, and distributes what remains. It tends to be slow, costly, and public, and the court runs the timeline. A funded revocable trust lets most assets skip it entirely.

How often should I update my plan?

Review after any big life event: marriage, divorce, a new child, a move, a death in the family. Otherwise, a look every three to five years keeps the plan in step with your wishes.

Whose guidance should I seek?

Estate planning is the ultimate financial-planning exercise. At minimum your team should include an experienced attorney; where you work with a financial advisor, including them in the conversation produces a more coherent strategy.

PUTTING IT TOGETHER

A complete Florida plan usually includes all six documents, drafted to work together as one. PEP designs, drafts, and executes the full set for one flat fee.

WORK WITH US

Speak with Derek.

It starts with a free thirty-minute call.



Derek Carrillo, Esq.

Founder & Managing Attorney · Premier Estate Planning

Every plan at Premier Estate Planning is drafted by the attorney whose name is on the engagement letter. If you would like to discuss what an appropriate plan looks like for your family, reach out directly. There is no obligation, and most callers leave with a clearer sense of their next steps.

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STEP 01

Consultation

A free thirty-minute call to understand your situation.

STEP 02

Flat fee in writing

We outline a path forward and quote one fixed fee, with no surprises.

STEP 03

Plan in ~2 weeks

Drafting, review, and an in-office signing. You leave with a bound portfolio.

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